

File No.: EXP202201983

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On January 31, 2022, a complaint was filed with entry registration number 000007128e2200004129 before the Spanish Agency for Data Protection against BICLAMEDIA, S.L. with NIF B87022117 (hereinafter, the complained party). The reasons for the complaint are as follows: A complaint has been registered with this Agency for the receipt of unsolicited commercial communications via SMS sent to several telephone lines linked to a Multisim card, where the main number is: ***TELEFONO.1. The numbers linked to the Multisim card are: ***TELEFONO.2, ***TELEFONO.3, and ***TELEFONO.4.

The received commercial SMS promoting the services of MÁSMÓVIL (on September 3 and October 29, 2021) and VIRGINTELCO (on August 31, 2021, and January 25, 2022).

The complainant indicates that on December 1, 2021, she began an email exchange with the DPD of the complained party, requesting opposition and clarifying that the number ***TELEFONO.1 is a Movistar Multisim and that it is this number where the advertising messages are being received in triplicate.

She receives a response informing her that the number ***TELEFONO.4 has been found and blocked in the database, but not all numbers associated with the Multisim card are blocked.

The complainant understands that this is not sufficient, as three individuals are affected by the receipt of these commercial communications since they share the phone ***TELEFONO.1, of which she is the holder.

Along with the notification, screenshots of the commercial SMS, email exchanges with the complained party, and the invoice for the telephone line ***TELEFONO.1 are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

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The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on February 22, 2022, as evidenced by the acknowledgment of receipt in the file. On March 22, 2022, a response was received by this Agency indicating that the telephone numbers ***TELEFONO.1, ***TELEFONO.2, and ***TELEFONO.3 are not registered in the personal data files of BICLAMEDIA. Only the record corresponding to the number ***TELEFONO.4 was found, and that this number has been deleted from the files of BICLAMEDIA, and they inform the complainant of its deletion.

Furthermore, they state that this number was never communicated to DIGITAL MEDIA PUBLICIDAD, MARKETING Y DISTRIBUCIÓN, S.L., as the data processor for sending communications, neither for sending SMS nor for commercial calls by BICLAMEDIA, and that they have proceeded to include the complainant's main telephone number and the associated telephone numbers in their own Robinson List, in order not to send further commercial communications to the affected party.

THIRD: On April 30, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary

investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATION ACTIONS

-1.- Analysis of the documentation provided in the response to the forwarding.

The information provided by the complained party is examined, and it is confirmed that the exchange of communications reflected in AT.DOC#3 matches the information provided by the complainant. The document AT.DOC#4 is evaluated, and it is verified that the personal data of the complainant is not included in the databases of DIGITAL MEDIA. The complainant states that the screenshots provided correspond to the databases managed by DIGITAL MEDIA ("All lists") and to the databases managed by DIGITAL MEDIA as the data processor for BICLAMEDIA ("_LISTAS_BICLAMEDIA"). The document AT.DOC#5 is analyzed, concluding that no commercial SMS have been sent to the numbers indicated by the complainant after 2017. It includes screenshots of the results of the queries of their databases,

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both for the Masmovil Group (brands Yoigo and Masmovil) and Euskatel (brand VIRGIN).

-2.- Analysis of SMS provided by the claimant.

On May 19, 2022, it is verified that the link to stop receiving further advertising (No + Publi <https://bit.ly/2PzLq>) found in the advertising SMS received by the claimant and submitted as evidence redirects to the website

<https://www.soloaqui.es/bajas/unico/t/intermedia.php?b=biclamedia&c=yoigo&afdm;=sm>

On this website, the upper option can be selected to unsubscribe from their database, and this action leads to the automatic unsubscription system, hosted on the website

<https://www.soloaqui.es/bajas/unico/t/?b=biclamedia&c=yoigo&afdm;=sm> f=1

This link allows the input of the mobile number receiving the messages to unsubscribe from the system. It also allows for the consultation of the privacy policy, which states:

"This Privacy Policy aims to inform, in accordance with [...], how we obtain, process, and protect the personal data you provide or collect through forms or cookies, on our website --

<https://landings.bestdeals-bc.com/> -- The website is owned by BICLAMEDIA SLU [...]."

Screenshots of the previously explained links are recorded in the SIGRID system as associated objects.

-3.- Response from the claimant.

On the same date, an additional information request is sent to the claimant, requiring confirmation that all commercial SMS received after the initial complaint were received simultaneously on the three terminals with dual SIM on the telephone line #Tfno_MultiSIM. The claimant responds affirmatively on May 30, 2022, and provides a screenshot specifying that SIM 1 corresponds to that number.

It is verified that in all the SMS provided as evidence by the claimant, the identification SIM 1 appears. When asked whether the claimant had maintained any contract with MASMOVIL or with VIRGIN Telco at any time, the claimant confirms only an attempt to port the line #Tfno_MultiSIM to MASMOVIL in May 2021, which did not materialize and in which the transfer of data to receive commercial information about products and services from both the MASMOVIL group of companies and third parties was expressly prohibited, and the receipt of commercial information was not authorized. The claimant provides the contract.

Regarding the website "<https://landings.bestdeals-bc.com/>," the claimant indicates that they were unaware of its existence until the communication from the AEPD.

-4.- Response from the defendant.

Also on that date, May 19, 2022, a request for information is sent to the defendant.

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In response to this request, the defendant submits to this Agency, dated June 2, 2022 (entry registration number in the AEPD REGAGE22e00022257640), the following information and statements:

- That BICLAMEDIA has never had in its data files the telephone numbers #Tfno_MultiSIM, #Tfno_SIM_1, and #Tfno_SIM_2, nor, consequently, personal data associated with those telephone numbers. The only telephone number existing in BICLAMEDIA's personal data files is #Tfno_SIM_3. It provides documentation DOC#4 that certifies the procedure for obtaining the data of the holders of the telephone line #Tfno_SIM_3.
- That the website <https://landings.bestdeals-bc.com/> is owned by the defendant, BICLAMEDIA.
- That BICLAMEDIA does not send commercial communications. This processing is subcontracted by BICLAMEDIA to third-party companies in their capacity as data processors, in this case DIGITAL MEDIA PUBLICIDAD, MARKETING Y DISTRIBUCIÓN, S.L. The defendant continues to add that, according to information provided by DIGITAL MEDIA PUBLICIDAD, MARKETING Y DISTRIBUCIÓN, S.L., this company has not sent any commercial communication to the holder of the telephone line #Tfno_SIM_3 against the data file of BICLAMEDIA.

BICLAMEDIA provides the following documents, which will be elaborated on later:

DOC#1-. Framework contract for the purchase of databases of potential customers through third parties, dated December 4, 2020. Participants: on one side, BICLAMEDIA (Supplier); on the other side, DIGITAL MEDIA (Intermediary); and, on the other side, EUSKALTEL, S.A. and R CABLE y TELECABLE TELECOMUNICACIONES, S.A.U. (hereinafter, EUSKALTEL) (Companies).

DOC#2-. Service provision contract, dated October 24, 2019. Participants: on one side, DIGITAL MEDIA and, on the other side, BICLAMEDIA.

DOC#3-. Database transfer contract with intermediation, dated January 31, 2020. Participants: on one side, BICLAMEDIA; on the other side, DIGITAL MEDIA; and, on the other side, XFERA MÓVILES, S.A.U. (hereinafter, XFERA)

DOC#4-. Certificate of obtaining personal data issued by BICLAMEDIA, dated May 25, 2022. (Regarding the line #Tfno_SIM_3)

DOC#5-. Certificate of registration table issued by BICLAMEDIA dated May 25, 2022. (Regarding the line #Tfno_SIM_3)

- Text of the log lines presented in the previous certificate.

DOC#1 is an agreement whose purpose is to regulate the conditions under which the communications of personal data from the Supplier to the Companies through the Intermediary will be governed, so that the Companies can carry out, solely by electronic means, advertising campaigns promoting the products and services of all the brands that operate.

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Each data communication is defined in scope and cost in the relevant annex, with identifying data: mobile phone and category of affected individuals: potential clients. Annex II defines the nature, purposes of the processing, and characteristics of the data and specifies the subcontracting entities. In the section "Data communication from the provider to the companies," the provider declares the lawful origin of the personal data subject to the transfer, guaranteeing that it has been obtained in compliance with the requirements established in Article 6 of the GDPR.

DOC#2 is a contract whose object is the exploitation by DIGITAL MEDIA of the BICLAMEDIA database.

DOC#3 is a contract whose object is the transfer of the BICLAMEDIA database for use by XFERA, with the intermediation of DIGITAL MEDIA.

The three documents are reviewed and considered correct.

Regarding the certificates provided by the responding party, in DOC#4 - Certificate of obtaining personal data issued by BICLAMEDIA - it is specified that the personal data appearing in the automated file BESTDEALS (obtained through the reception of the same via the participation form in the raffle on the website <https://landings.bestdeals-bc.com/sorteamos-un-iphone-11/>) are as follows:

Name and surname: A.A.A.

Phone: ***TELEFONO.4 (#Tfno_SIM_3)

Sex: X

IP: ***IP.1

Obtained on the date: Registration Date: 08/02/2021

The personal data matches those that were submitted as deleted on December 1, 2021, in AT.DOC#1 and which the responding party states it retains solely for the purposes of Public Administrations, Judges, and Courts.

In certificate DOC#5, the data of phone #Tfno_SIM_3 registered in the access to the landing of the iPhone 11 raffle belonging to BICLAMEDIA and the activity data collected in the log corresponding to the activity and actions performed by the IP captured in the registration of phone #Tfno_SIM_3 are presented.

Analyzing the provided logs, it is verified that the claiming party provided the following data on the Registration date 2021-02-08:

Name: A.A.A.

Surnames: -

Email: ***EMAIL.1

Phone: ***TELEFONO.4 (#Tfno_SIM_3)

Country: ES

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Sex: X

Postal code: -

And accepted:

- 1-. The privacy policy of BICLAMEDIA and the bases of the raffle.
- 2-. To receive commercial communications from BICLAMEDIA regarding services and products related to the sectors of activity reflected in the privacy policy of BICLAMEDIA.
- 3-. To receive commercial information from the sponsors about services and products related to the sectors of activity reflected in the privacy policy of BICLAMEDIA.
- 4-. That BICLAMEDIA transfers the processing of their data to third companies related to the sectors of activity detailed in the privacy policy of BICLAMEDIA.

It is verified that the website <https://landings.bestdeals-bc.com/sorteamos-un-iphone-11/> is still active, and screenshots of the navigation on that link, along with the privacy policy, legal notice, sponsors, and information, are recorded as associated objects in SIGRID. It is verified that on the initial page, it allows the acceptance of the consents specified above by selecting the corresponding boxes.

-5.- Verification of evidence by the operator of the claiming party.

On May 31, 2022, an information request is sent to the operator of the claiming party to confirm the receipt of commercial SMS messages, to which they respond on June 8, 2022.

Point 1. Confirmation of the receipt of commercial SMS messages on the number #Tfno_MultiSIM on the following days:

- MASMOVIL: September 3 and October 29, 2021, March 8 and April 27, 2022.
- VIRGINTELCO: August 31, 2021, January 25 and May 9, 2022.

-. YOIGO: December 1, 2021, and March 31, 2022.

SMS ORIGIN

DATE

RECEPTION

MASMOVIL

3/09/2021

NO

MASMOVIL

29/10/2021

NO

MASMOVIL

08/03/2022

YES

MASMOVIL

27/04/2022

YES

VIRGINTELCO

31/08/2021

NO

VIRGINTELCO

25/01/2022

YES

VIRGINTELCO

09/05/2022

NO

YOIGO

1/12/2021

NO

YOIGO

31/03/2022

NO

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2. Confirmation that the previous commercial SMS messages were sent by MASMOVIL // VIRGINTELCO // YOIGO or, if applicable, the source of such commercial SMS messages.

The nature of the SMS is not recorded.

-.6.- Response from the advertising operators.

On July 20, 2022, information requests were sent to XFERA and EUSKALTEL (operators of the commercial brands advertised in the claimed SMS) in which inquiries were made, among others, about the origin of the personal data associated with #Tfno_MultiSIM, the consent of the holder of that number for receiving commercial information, and the reasons why these SMS messages continued to be sent despite the claimant being on the Robinson list.

These operators submitted a response document dated August 8, 2022, and both belong to the Masmovil-Euskatel Group, so their responses are similar.

XFERA

Regarding the requested information related to the commercial SMS messages from the brands Masmovil and Yoigo allegedly sent to the line #Tfno_MultiSIM, XFERA states that it has reviewed its

systems and certifies that no SMS has been sent to the line #Tfno_MultiSIM by XFERA, neither on the indicated dates nor on any other. Furthermore, there is no record in its systems or personal data processed or stored in relation to the mentioned phone number.

XFERA, on its own initiative, mentions its collaboration with the defendant party for the preparation of its response to the information transfer carried out within the framework of procedure AT/00764/2022 and again provides information about the phones #Tfno_SIM_1, #Tfno_SIM_2, and #Tfno_SIM_3.

It explains that the line #Tfno_SIM_1 is a customer of the YOIGO brand and provides information about campaigns conducted for this line as part of the portfolio campaigns based on the permissions granted by the customer, despite this line not being the subject of the claim.

It is noted that the SMS messages sent in this campaign do not correspond to the SMS messages claimed by the claimant.

XFERA indicates, for informational purposes, that the processing of data of customers and potential customers for commercial purposes is separate, having conducted searches for the claimant's data on the prospecting systems that impact potential customers, as this is the subject of the claim against BLICAMEDIA.

XFERA continues by confirming that on the dates of the SMS there was no MultiSIM service with the header number #Tfno_MultiSIM associated with the number #Tfno_SIM_1 and clarifies that at a technical level, it is impossible to associate SIMs from different operators to a MultiSIM service. (This clarification from the operator corresponds to an error on their part in interpreting the issue, as the claimant possesses dual SIM terminals that belong to other operators.)

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It continues to indicate that a possible explanation for the receipt of these SMS messages is that the number #Tfno_MultiSIM is indeed part of a MultiSIM service from Telefónica móviles and that the SMS messages are being sent to the numbers of the other SIM cards included in that service.

EUSKALTEL

In the same vein, EUSKALTEL certifies that no SMS has been sent to the line #Tfno_MultiSIM by EUSKALTEL and there is no record in its systems or personal data processed or stored in relation to the mentioned phone number.

It provides a screenshot of the search for SMS sent to any of the numbers #Tfno_MultiSIM, #Tfno_SIM_1, #Tfno_SIM_2, and #Tfno_SIM_3 from the date of issuance of the previous certificate (March 10, 2021) to the present, with the result being null.

And it continues to explain the impossibility of associating SIMs from different operators to a MultiSIM service and clarifying the possible explanations mentioned earlier.

-7.- Reconfirmation of evidence by the operator of the claimant party.

On February 2, 2023, the operator of the claimant party is requested to clarify information about the contract for the MultiSIM line, providing the complete list of numbers linked to the number #Tfno_MultiSIM through some type of multisim service, dual sim, etc., or possible diversions associated with the mentioned number that may explain the receipt of SMS messages sent to another number.

On February 13, 2023, the operator of the claimant party sends the following information and statements to this Agency:

-. That in the customer's park holding the mobile line #Tfno_MultiSIM, three additional multisim cards are contracted, which were activated on May 13, 2020, associated with the phone numbers ***TELEFONO.5, ***TELEFONO.6, and ***TELEFONO.7.

The operator continues to explain that, although commercially the customer has a single number with several associated SIM cards, in the network it is necessary for each SIM to have an IMSI number and associated line. (IMSI = International Mobile Subscriber Identity)

It adds that no request or order has been found for the activation of the call forwarding functionality.

- Regarding the confirmation of the receipt of SMS messages at the number #Tfno_MultiSIM or at any of the associated numbers collected in the previous point, the operator confirms the receipt of the following messages at one of the internally associated phone numbers:

DATE

TYPE MSISDN_O

MSISDN_D

20220125 111610

SMS Virgintelco

***TELEFONO.6

20220308 132505

SMS MASMOVIL

***TELEFONO.6

20220427 135211

SMS MASMOVIL

***TELEFONO.6

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These SMS messages correspond to the SMS messages whose receipt was previously confirmed by this operator and correspond to the SMS messages that the claimant submitted to their claim subsequently.

LEGAL GROUNDS

I

Competence

According to the provisions of Article 43.1 of Law 34/2002, of July 11, on information society services and electronic commerce (hereinafter LSSI) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD stipulates that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Prohibition of commercial communications made via email or equivalent electronic communication means

Article 21 of the LSSI establishes the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and

in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited."

III

Conclusion

Through the actions carried out by this Agency, it has not been possible to verify the receipt of six of the nine SMS messages sent to the claimant (including those submitted to the claim subsequently), allegedly sent to the number ***TELEFONO.1.

Of the nine commercial SMS messages claimed by the claimant, the receipt of three SMS messages has been confirmed at the internal number of one of the SIM cards associated with the claimant's MultiSIM contract, an internal number that is unknown and is not the subject of the claim, although they were allegedly received at the number ***TELEFONO.1.

Both the respondent and its manager and the advertising operators have provided evidence of the non-inclusion of the phone numbers provided by the claimant in their databases, except for the number ***TELEFONO.4. The evidence consists of certificates that include screenshots of the unsuccessful search for the numbers in their databases.

The respondent has provided evidence that the claimant provided the number ***TELEFONO.4 when participating in a raffle and accepted the receipt of commercial communications.

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the competence of the Spanish Agency for Data Protection.

Thus, in accordance with the aforementioned, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO PROCEED TO THE FILING of these proceedings.

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SECOND: NOTIFY this resolution to BICLAMEDIA, S.L. and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may, optionally, file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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